

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Aliza Klingenstein	Team: Squad #07	CCRB Case #: 202102396	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/13/2021 3:06 PM	Location of Incident: Outside of § 87(2)(b)	18 Mo. SOL 10/13/2022	Precinct: 111		
Date/Time CV Reported Fri, 04/16/2021 12:09 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 04/16/2021 12:09 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Falcone	21472	945706	111 PCT
2. POM Christophe Walinski	09910	942683	111 PCT
3. POF Kristen Aydiner	03908	930597	111 PCT
4. POF Lauren Creighton	22247	965014	111 PCT
5. POM Michael Ippolito	09212	963577	111 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Rory Erskine	02446	944538	111 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Falcone	Abuse: Police Officer Michael Falcone refused to provide his name to § 87(2)(b)	A . Substantiated
B . POM Christophe Walinski	Abuse: Police Officer Christophe Walinski refused to provide his name to § 87(2)(b)	B . Substantiated
C . POF Lauren Creighton	Abuse: Police Officer Lauren Creighton refused to provide her name to § 87(2)(b)	C . Substantiated
D . POM Michael Ippolito	Abuse: Police Officer Michael Ippolito refused to provide his name to § 87(2)(b)	D . Substantiated
E . POF Kristen Aydiner	Abuse: Police Officer Kristen Aydiner refused to provide her name to § 87(2)(b)	E . Substantiated
F . POM Michael Falcone	Abuse: Police Officer Michael Falcone refused to provide his shield number to § 87(2)(b)	F . Unfounded
G . POM Christophe Walinski	Abuse: Police Officer Christophe Walinski refused to provide his shield number to § 87(2)(b)	G . Unfounded
H . POF Lauren Creighton	Abuse: Police Officer Lauren Creighton refused to provide her shield number to § 87(2)(b)	H . Unfounded
I . POM Michael Ippolito	Abuse: Police Officer Michael Ippolito refused to provide his shield number to § 87(2)(b)	I . Unfounded
J . POF Kristen Aydiner	Abuse: Police Officer Kristen Aydiner refused to provide her shield number to § 87(2)(b)	J . Unfounded
K . POM Christophe Walinski	Abuse: Police Officer Christophe Walinski threatened to arrest § 87(2)(b)	K . Exonerated
L . POM Michael Falcone	Abuse: Police Officer Michael Falcone forcibly removed § 87(2)(b) to the hospital.	L . Exonerated

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On April 16, 2021, § 87(2)(b) filed the following complaint via the CCRB Call Processing System.

On April 13, 2021 at approximately 3:06 p.m. outside of § 87(2)(b) in Queens, Police Officers Michael Falcone, Christophe Walinski, Lauren Creighton, Michael Ippolito, and Kristen Aydiner of the 111th Precinct approached § 87(2)(b) after his neighbor, § 87(2)(b), called 911 and complained of harassment from § 87(2)(b). § 87(2)(b) stated to the five officers, “I want all your names,” but no officers provided this information (**Allegations A-E: Abuse of Authority, substantiated**). § 87(2)(b) allegedly also requested the officers’ shield numbers (**Allegations F-J: Abuse of Authority, unfounded**). PO Walinski told § 87(2)(b) that he could be arrested if his behavior escalated in the future (**Allegation K: Abuse of Authority, exonerated**). EMS arrived on scene and PO Falcone facilitated removing § 87(2)(b) to the hospital (**Allegation L: Abuse of Authority, exonerated**).

§ 87(2)(g), § 87(4-b)

The investigation obtained six BWC videos from the incident that were used to analyze the allegations (**Board Review 01-06**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Michael Falcone refused to provide his name to § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Christophe Walinski refused to provide his name to § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Lauren Creighton refused to provide her name to § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Michael Ippolito refused to provide his name to § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Kristen Aydiner refused to provide her name to § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Michael Falcone refused to provide his shield number to § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Christophe Walinski refused to provide his shield number to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Lauren Creighton refused to provide her shield number to § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Michael Ippolito refused to provide his shield number to § 87(2)(b)

Allegation (J) Abuse of Authority: Police Officer Kristen Aydiner refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) testified (**Board Review 07**) that he was sitting in his vehicle when officers approached him and asked him to step out of his vehicle. § 87(2)(b) did not know the officers but believed that the officers were familiar with him, as officers were often called to respond to ongoing disputes between § 87(2)(b) and his neighbors. § 87(2)(b) exited his vehicle and stated that he wanted all the officers’ names and shield numbers, but none of the officers provided this information.

§ 87(2)(g)

. It is therefore recommended that **Allegations F, G, H, I, J** be closed as **unfounded**.

Allegation (K) Abuse of Authority: Police Officer Christophe Walinski threatened to arrest

§ 87(2)(b)

In PO Walinski's BWC (**Board Review 02**) at minute mark 05:18, § 87(2)(b) tells PO Walinski that he has video footage of § 87(2)(b) putting a "nasty" letter in his mailbox. At minute mark 06:29, PO Walinski tells § 87(2)(b) that he needs to stop putting letters in people's mailboxes, and § 87(2)(b) responds that he does not know what PO Walinski is talking about. PO Walinski tells § 87(2)(b) that there is video footage of this, and at minute mark 06:39 PO Walinski says to § 87(2)(b) "Keep doing it and you'll be arrested for aggravated harassment, okay?"

PO Walinski testified (**Board Review 09**) that § 87(2)(b), another neighbor of § 87(2)(b) had complained of unwanted letters containing poetry in his mailbox during a prior incident. § 87(2)(b) had asked PO Walinski to file a report against § 87(2)(b) but PO Walinski had told § 87(2)(b) that there was insufficient evidence to determine if § 87(2)(b) had sent the letters. During this incident, PO Walinski told § 87(2)(b) that he needed to stop putting letters in people's mailboxes because it could be considered aggravated harassment if people found the letters threatening and could prove that § 87(2)(b) had sent them. As aggravated harassment is an arrestable offense, PO Walinski said this to warn § 87(2)(b) that he could be arrested if his behavior escalated in the future.

New York Penal Law 240.30 (**Board Review 14**) states that a person is guilty of aggravated harassment when s/he communicates through any form of communication a threat to cause physical harm to, or unlawful harm to the property of, another person.

§ 87(2)(g)

. It is therefore recommended that **Allegation K** be closed as **exonerated**.

Allegation (L) Abuse of Authority: Police Officer Michael Falcone forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) stated (**Board Review 07**) that the officers asked him if he spoke to a psychiatrist and took his medications, which caused § 87(2)(b) to not want to speak with the officers further. An ambulance and two EMTs arrived but the EMTs never exited the ambulance. § 87(2)(b) did not speak to the EMTs before entering the ambulance. PO Falcone instructed § 87(2)(b) to enter the ambulance but § 87(2)(b) refused. § 87(2)(b) eventually entered the ambulance and an officer instructed him to fasten his seatbelt. § 87(2)(b) refused, and the officer said that if he did not fasten his seatbelt, he would be handcuffed and his seatbelt would be fastened for him. § 87(2)(b) fastened his seatbelt and was removed to the hospital.

In PO Falcone's BWC (**Board Review 01**) at minute mark 02:35, PO Falcone tells § 87(2)(b) that EMS is going to come and ask him a few questions, but § 87(2)(b) can refuse medical attention if he chooses. At minute mark 06:38 an ambulance arrives on scene and PO Falcone tells the male EMT that it was § 87(2)(b)'s neighbor who classified § 87(2)(b) as

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four other CCRB complaints and has been named as a victim in 31 other allegations (**Board Review 19**):
 - § 87(2)(b)
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 -
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- PO Falcone has been a member of service for 13 years and this is the first CCRB complaint to which he has been a subject.
- PO Walinski has been a member of service for 15 years and has been named as a subject in one prior CCRB complaint involving one allegation, which was closed as complainant uncooperative. § 87(2)(g)

- PO Creighton has been a member of service for three years and has been a subject in two other CCRB complaints involving three allegations, all of which are still under investigation. § 87(2)(g)
- PO Ippolito has been a member of service for four years and has been a subject in one other CCRB complaint involving one allegation, which is still under investigation. § 87(2)(g)
- PO Aydiner has been a member of service for 19 years and has been a subject in two other CCRB complaints involving four allegations, none of which were substantiated. § 87(2)(g)

Civil and Criminal Histories

- As of July 14, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**Board Review 20**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 7

Investigator:	Inv. Klingenstein Signature	Inv. Aliza Klingenstein Print Title & Name Manager Vanessa Rosen	July 30, 2021 Date August 2, 2021
Squad Leader:	Signature	Print Title & Name	Date
Reviewer:	Signature	Print Title & Name	Date